

National Medical Education Act, 2019

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Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "National Medical Education Act, 2075."

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Commission" means the Medical Education Commission pursuant to Section 3.

(b) "Chairperson" means the Chairperson of the Commission.

(c) "Constituent Teaching Institution" means a constituent campus, medical college or teaching institution providing medical education operated under the ownership and investment of the university itself.

(d) "Higher Education" means medical education provided at bachelor level or above.

(e) "Vice-Chairperson" means the Vice-Chairperson of the Commission.

(f) "Medical Education" means education of all disciplines and levels relating to the health profession (health professional education).

(g) "Medical Education Expert" means an expert who provides service, teaching and research in any discipline of health service, and said term also includes a medical education methodologist.

(h) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(i) "Director" means the Director pursuant to Section 29.

(j) "Directorate" or "Board" means the Directorate or Board pursuant to Section 28.

(k) "Council" means the Technical Education and Vocational Training Council established pursuant to prevailing law.

(l) "Instructor" means a person appointed to teach at the certificate level of a teaching institution.

(m) "Academy" means an academy established pursuant to prevailing law to provide medical education.

(n) "Merit List" means the order of merit determined based on the results of examinations as specified by the Commission and other prescribed bases.

(o) "University" means a university established pursuant to prevailing law to provide or cause to provide medical education.

(p) "Teacher (Faculty)" means a professor, associate professor and assistant professor who teaches, provides or causes to provide teaching, service and research in a teaching institution providing medical education, having obtained at least a post-graduate degree in the relevant subject for teaching higher

education.

(q) "Tuition Fee" means the admission, teaching, lab, library, community training or examination fee charged by a teaching institution during the entire study period of medical education, and said term also includes other fees charged by the teaching institution with the approval of the Commission.

(r) "Teaching Institution" means a medical college or teaching institution established pursuant to prevailing law that provides medical education, and said term also includes the permission for an extended program granted to operate a teaching institution.

(s) "Committee" means the Executive Committee pursuant to Section 8.

(t) "Affiliation" means the formal academic relationship granted by a university or by the Technical Education and Vocational Training Council for a teaching institution to follow the curriculum, admission, faculty structure, examination method and confer degrees for conducting its educational program.

(u) "Public Teaching Institution" means a government, community or other teaching institution established using government, public trust or public property.

Chapter-3

Constitution, Functions, Duties and Powers of the Commission

5. Constitution of the Commission: (1) The Commission shall be constituted as follows:-

(a) Prime Minister - Chairperson

(b) Minister of the Government of Nepal dealing with education related subject - Co-Chairperson

(c) Minister of the Government of Nepal dealing with health related subject - Co-Chairperson

(d) One person appointed by the Government of Nepal from among doctors who have made significant contribution to the medical field - Vice-Chairperson

(e) Member, National Planning Commission (looking after education and health) - Member

(f) Three persons from among the Vice-Chancellors of universities and academies where medical education programs are conducted - Member

(g) Secretary of the Government of Nepal dealing with education related subject - Member

(h) Secretary of the Government of Nepal dealing with health related subject - Member

(i) Chairperson, University Grants Commission - Member

(j) Vice-Chairperson, Technical Education and Vocational Training Council - Member

(k) Chairperson, Ayurveda Medical Council - Member

(l) Chairperson, Nepal Health Research Council - Member

(m) Chairperson, Nepal Nursing Council - Member

(n) Chairperson, Nepal Health Professional Council - Member

(o) Chairperson, Nepal Pharmacy Council - Member

(p) Two persons, including at least one woman, from among the Presidents of national level authoritative professional organizations including medical and nursing related to health - Member

(q) President of the national level authoritative organization of private teaching institution operators other than medical and dental - Member

(r) Two persons, including at least one woman, of repute from civil society - Member

(s) Chairperson, Nepal Medical Council - Member

(t) Three persons, including at least two women, from among medical education experts on the basis of inclusive principle - Member

(u) President, Nepal Medical Association - Member

(v) President of the national level authoritative organization of private medical and dental college operators - Member

(w) Senior employee of the Commission - Member-Secretary

(2) The members pursuant to clauses (f), (p), (q), (r) and (t) of sub-section (1) shall be nominated by the Chairperson.

(3) The term of office of a nominated member pursuant to sub-section (1) shall be four years, and they may be renominated for another term.

(4) Notwithstanding anything contained in sub-section (3), if the Commission decides that a nominated member has not behaved in accordance with their position or has not fulfilled their responsibilities, the Chairperson may remove such member from office at any time:

Provided that such person shall not be deprived of an opportunity to submit their defense before such removal. 6.

Functions, Duties and Powers of the Commission: In addition to the functions, duties and powers mentioned elsewhere in this Act, the other functions, duties and powers of the Commission shall be as follows:- (a) To formulate national policies to be adopted in the field of medical education, (b) To determine policies and standards relating to standards and levels of all levels and disciplines of medical education at the federal and provincial levels, (c) To determine policies and standards for conducting common entrance examination, (d) To determine policies, bases and standards relating to accreditation, (e) To determine policies relating to academic advancement and research, (f) To give necessary directives to universities, academies and councils on matters of medical education, (g) To approve accreditation bases for the National Board of Medical Specialties, (h) To formulate policies and standards relating to letter of intent, affiliation and revocation of affiliation, (i) To confer degrees to doctors who pass the examination conducted by the National Board of Medical Specialties, (j) To approve the annual budget of the Commission and the staffing positions required for the Commission, (k) To approve the mapping for the establishment of teaching institutions, (l) To perform other functions as prescribed. 7.

Meeting and Decision of the Commission: (1) Meetings of the Commission shall be held as required: Provided that the interval between two meetings shall not exceed six months. (2) The meeting of the Commission shall be held at the date, time and place specified by the Chairperson. (3) The Member-Secretary of the Commission shall give notice to the members of the Commission, including the

agenda of subjects to be discussed in the meeting, at least twenty-four hours before the meeting is held: Provided that if the Chairperson of the Commission so desires, a meeting may be called at any time. (4) If more than fifty percent of the total number of members currently holding office in the Commission are present, the meeting of the Commission shall be deemed to have attained the quorum. (5) The meeting of the Commission shall be presided over by the Chairperson of the Commission. (6) The opinion of the majority shall prevail in the meeting of the Commission, and in case of a tie, the person presiding over the meeting shall cast the deciding vote. (7) The Commission may invite any person, office bearer or expert to its meeting. (8) If any member has a personal interest, concern, involvement or stake in any matter presented for discussion or decision in the meeting of the Commission, such member shall not be entitled to participate in the discussion or decision-making process on that matter. (9) The decision of the meeting of the Commission shall be certified and kept by the Vice-Chairperson. (10) Other procedures relating to the meeting of the Commission shall be as determined by the Commission itself. Chapter-4 Constitution, Functions, Duties and Powers of the Committee 8. Executive Committee: (1) There shall be an Executive Committee to function as the executive body of the Commission. (2) The Committee shall be constituted as follows:- (a) Vice-Chairperson - Chairperson (b) Directors - Members (c) At least two members, including at least one woman, nominated by the Chairperson from among the members of the Commission - Members (3) The Member-Secretary of the Commission shall function as the Member-Secretary of the Committee. (4) The term of office of a nominated member in the Committee shall remain in force as long as they remain a member of the Commission. (5) If a nominated member in the Committee fails to fulfill their responsibilities or does not behave in accordance with their position, the Chairperson of the Commission may, on the recommendation of the Chairperson of the Committee, remove such member at any time and nominate another person: Provided that such person shall not be deprived of an opportunity to submit their defense before such removal. 9.

Functions, Duties and Powers of the Committee: The functions, duties and powers of the Committee shall be as follows:- (a) To coordinate between the Directorate and the Board, (b) To review, monitor and evaluate the work of the Directorate and the Board, and give directives to the Directorate and the Board as required, (c) To make necessary modifications to the work plans, proposals, guidelines or standards submitted by the Directorate and the Board and submit them to the Commission for approval, (d) To recommend to the Commission for a letter of intent pursuant to this Act on the basis of the recommendation of the concerned Directorate, (e) To cause the concerned Directorate and the Board to implement policies and programs approved by the Commission, (f) To write to the concerned university for revocation of affiliation of a teaching institution pursuant to this Act, (g) To cooperate and coordinate with national and international bodies in the field of medical education, (h) To prepare mapping for the establishment of teaching institutions, (i) To recommend to the Commission on matters relating to student seat numbers, tuition fees and affiliation of teaching institutions, (j) To perform or cause to perform other functions as prescribed. 10. Meeting and Decision of the Committee: (1) Meetings of the Committee shall be held as required. (2) The meeting of the Committee shall be held at the date, time and place specified by the Chairperson of the Committee. (3) The Member-Secretary of the Committee shall send notice including the agenda of subjects to be discussed in the meeting to all members at least twenty-four hours before the meeting of the Committee is held. (4) If more than fifty percent of the total number of members of the Committee are present, the meeting of the Committee shall be deemed to have attained the quorum. (5) The meeting of the Committee shall be presided over by the Chairperson of the Committee, and in the absence of the Chairperson, by a member chosen by the members of the Committee from among themselves. (6) The opinion of the majority shall prevail in the meeting of the Committee, and in case of a tie, the person presiding over the meeting shall cast

the deciding vote. (7) The decision of the meeting of the Committee shall be certified and kept by the Chairperson of the Committee. (8) Any expert or office bearer related to the work of the Committee may be invited to participate as an observer in the meeting of the Committee. (9) Other procedures relating to the meeting of the Committee shall be as determined by the Committee itself. Chapter-5 Letter of Intent, Affiliation and Accreditation 11.

Letter of Intent Required: (1) Notwithstanding anything contained in prevailing law, any person desiring to establish a teaching institution shall obtain a letter of intent from the Commission for the establishment of such institution. (2) For obtaining the letter of intent pursuant to sub-section (1), an application shall be submitted to the Commission along with the following details and documents:- (a) Details relating to mapping for the establishment of the teaching institution, (b) Financial and technical proposal relating to the establishment of the teaching institution, (c) Consent letter of the university from which affiliation is sought, (d) Approval letter of the ministry of the Government of Nepal dealing with health related subject for the operation of the hospital, (e) Other details and documents as specified by the Commission. (3) Upon examining the application and accompanying documents received pursuant to sub-section (2), if it appears that the standards and conditions determined pursuant to this Act and prevailing law for establishing the teaching institution have been fulfilled, the Commission shall grant a letter of intent to the applicant specifying the term and conditions. (4) If a teaching institution that has not operated a hospital pursuant to clause (a) of sub-section (1) of Section 12 has already obtained a letter of intent prior to the commencement of this Act but fails to fulfill the condition pursuant to that clause within the prescribed period, the letter of intent of such teaching institution shall not be renewed. (5) Other provisions relating to renewal of the letter of intent and the fee to be charged for renewal shall be as prescribed. 12.

Letter of Intent Not to be Granted: (1) Notwithstanding anything contained in Section 11, a letter of intent for establishing a teaching institution shall not be granted in the following circumstances:- (a) For conducting any program of the concerned subject until a hospital with at least three hundred beds for medical, and one hundred beds for dental and nursing is operated for student study and practice. (b) If other standards specified by the Commission are not fulfilled. (2) Notwithstanding anything contained in sub-section (1), for a period of ten years from the date of commencement of this Act, a letter of intent shall not be granted for establishing and operating a teaching institution within the Kathmandu Valley for conducting bachelor programs in medical, dental and nursing subjects. (3) In the case of teaching institutions that have obtained a letter of intent and completed infrastructure at the time of commencement of this Act, the following may be done:- (a) If the concerned teaching institution wishes to transfer assets to the government, the government may take ownership by paying reasonable compensation, or (b) If the concerned teaching institution wishes to relocate to an area prioritized by the Commission, the Government of Nepal shall provide incentive facilities. 13.

Provisions Relating to Affiliation: (1) Notwithstanding anything contained in prevailing law, universities and councils shall not grant affiliation to any teaching institution in subjects for which they do not have their own constituent program. (2) Notwithstanding anything contained in sub-section (1), the concerned university may, on the recommendation of the Commission, grant affiliation to a teaching institution that has the necessary academic, physical infrastructure and managerial capacity to conduct new educational programs not currently conducted in Nepal. (3) A university shall not grant affiliation to more than one teaching institution in medical or dental subjects in one district. (4) Notwithstanding anything contained in sub-section (3), taking into account population, available teaching institutions, geographical specificity, citizens' access to health services and social justice, there shall be no bar to granting affiliation to more than one teaching

institution in medical or dental subjects in a district deemed appropriate by the Commission. (5) Notwithstanding anything contained in sub-sections (2) and (3), a university shall not grant affiliation to a teaching institution in the following circumstances:- (a) If the conditions mentioned in the letter of intent obtained pursuant to prevailing law have not been fulfilled, (b) If the teaching institution's own hospital has not been fully operated for three years after obtaining approval pursuant to prevailing law for hospital operation, (c) If the standards specified by the Commission have not been fulfilled, (d) If other conditions or standards required to be fulfilled pursuant to prevailing law have not been fulfilled. (6) Notwithstanding anything contained elsewhere in this Act, after the promulgation of this Act, one university shall not grant affiliation to more than five teaching institutions. Provided that this provision shall not apply to teaching institutions outside the Kathmandu Valley that have already been granted affiliation prior to the promulgation of this Act and have met the standards after obtaining a letter of intent. In the case of other teaching institutions outside the Kathmandu Valley, it shall be as decided by the Commission. Nothing in this Act shall prevent the Commission from making such decision. 14.

Revocation of Affiliation: (1) Notwithstanding anything contained in prevailing law, the Commission may write to the concerned university to revoke the affiliation of a teaching institution or one or more educational programs of such institution in the following circumstances:- (a) If fees are charged in excess of those determined pursuant to Section 18, (b) If the standards relating to seat numbers determined by the Commission are violated, (c) If the directives given by the Commission are repeatedly violated, (d) If it does not appear that the standards determined pursuant to this Act have been fulfilled. (2) Before revoking the affiliation of a teaching institution pursuant to sub-section (1), the concerned university shall give such institution a reasonable opportunity to submit its defense. (3) If a teaching institution fails to submit its defense within the period given pursuant to sub-section (2), or if the defense submitted is not satisfactory, the concerned university shall revoke the affiliation of such teaching institution or one or more educational programs of such institution. (4) If the affiliation of a teaching institution or its educational program is revoked pursuant to sub-section (3), the concerned university shall inform the Commission of the same as soon as possible. (5) While revoking the affiliation of a teaching institution or its educational program pursuant to sub-section (3), the concerned university shall make arrangements for the continuation of studies of students studying in such teaching institution. (6) If students enrolled and studying in a teaching institution whose affiliation has been revoked pursuant to sub-section (3) cannot be continued for study in another teaching institution pursuant to sub-section (5), arrangements shall be made for such students to continue their studies in the same teaching institution without taking new admissions. (7) Provisions relating to revocation of affiliation of a teaching institution and the liability after such institution is revoked shall be as prescribed. 15.

Accreditation: (1) Notwithstanding anything contained elsewhere in this Act, a separate body shall be constituted pursuant to law to perform accreditation functions for all programs relating to medical education. (2) Until the body pursuant to sub-section (1) is constituted, the Standards and Accreditation Directorate shall perform accreditation functions. (3) Accreditation of certificate level programs under the Council shall be done by the Directorate or the body specified by the Commission. (4) Notwithstanding anything contained in prevailing law, after the commencement of this Act, the Council shall not conduct any technical programs relating to health education below the certificate level. (5) Any technical programs relating to health education below the certificate level conducted by the Council shall be phased out as prescribed and upgraded according to prescribed standards. (6) Procedures relating to accreditation shall be as prescribed. Chapter-6 Student Admission 16. Provisions Relating to Entrance Examination: (1) A person wishing to be admitted for study in higher education shall pass the entrance examination conducted by the Commission or an institution or body specified by the Commission by obtaining the minimum marks specified by the Commission. (2) A

person going from Nepal to another country for higher education shall have passed the entrance examination pursuant to sub-section (1), and a foreign person wishing to study higher education in teaching institutions in Nepal shall have obtained the minimum percentage specified by the Commission in subjects specified by the Commission. (3) The Commission shall prepare and publish an integrated list on the basis of the merit list of the entrance examination conducted pursuant to sub-section (1).

While publishing such list, the number of scholarship seats provided to the Government of Nepal, the number of seats reserved pursuant to this Act and prevailing law, the number of seats set aside for foreign students and the number of open seats shall also be mentioned in the list.

(4) While preparing the merit list pursuant to sub-section (3), the merit list shall be prepared by providing special weightage as prescribed to doctors who have served in prescribed remote areas at the level above bachelor.

(5) Notwithstanding anything contained elsewhere in this section, the following shall apply in the following circumstances:-

(a) For the purpose of going abroad to study subjects for which an entrance examination has not been conducted, the Commission or the body specified by the Commission may issue a permission letter,

(b) Until the entrance examination is commenced by the Commission, the merit list shall be maintained from the entrance examination taken by universities and academies,

(c) Provisions relating to entrance examination for certificate level health education related programs under the Council shall be made by the Council in coordination with the Commission.

(6) A doctor who has completed MBBS or BDS shall be eligible to participate in the entrance examination for postgraduate programs only after gaining one year of work experience:

Provided that this provision shall not apply to foreign students, basic medical sciences, MDGP programs and public health, and provisions relating to work experience required for postgraduate programs of other disciplines shall be as specified by the Commission.

(7) The curriculum, syllabus and other provisions relating to the entrance examination shall be as prescribed.

17.

Student Admission and Academic Calendar: (1) The Commission shall specify a fixed number of seats each year for universities, academies and other teaching institutions on the basis of prescribed standards. (2) When admitting students, universities, academies or other teaching institutions shall admit students on the basis of the merit list of the entrance examination pursuant to Section 16: Provided that when admitting students to scholarship seats provided to the Government of Nepal and reserved seats, persons recommended for such seats shall be admitted on the basis of the merit list. (3) Universities, academies or other teaching institutions shall admit students selected through the entrance examination in accordance with the matching system. (4) Colleges operated from domestic investment shall provide at least ten percent of the total seat numbers, and teaching institutions operated from joint investment of Nepali and foreign investors or from foreign investment shall provide at least twenty percent of the total seat numbers to the Government of Nepal as free scholarships. (5) Among the total seat numbers specified for bachelor and postgraduate levels, the number of foreign students shall not exceed one-third. (6) Notwithstanding anything contained in sub-section (5), in the case of teaching institutions providing twenty percent seats as free scholarships to the Government of Nepal, the number of foreign student seats shall be a maximum of fifty

percent. (7) Public teaching institutions shall arrange at least seventy-five percent of the available seat numbers in bachelor level programs for free scholarships, and such seats may be gradually increased on the advice of the Commission. (8) The Government of Nepal shall provide a lump sum grant to public teaching institutions in consideration of providing free scholarships pursuant to sub-section (7). (9) An integrated annual academic calendar shall be implemented for MBBS, Dental and other programs in teaching institutions. (10) Other provisions relating to providing scholarships shall be as prescribed. Chapter-7 Tuition Fee 18.

Provisions Relating to Tuition Fee: (1) Notwithstanding anything contained in prevailing law, the fee to be charged for bachelor programs in medical education shall be as follows:- (a) Taking into account the cost and operating expenses of the university, academy or teaching institution, inflation, geographical location, scholarship and free service, the Commission shall determine the fee in consultation with the university, academy and teaching institution. (b) One-third of the amount to be taken from the student shall be taken in the first year and the remaining amount in installments annually. (c) The student shall pay the first year fee through the concerned university. (2) Provisions relating to the fee to be charged for postgraduate programs in medical education shall be as follows:- (a) In the case of educational institutions other than public teaching institutions, the Commission shall determine the fee in consultation with the concerned university, academy and teaching institution. (b) When studying basic medical sciences or clinical disciplines (medical and dental) in a public teaching institution, no tuition fee shall be charged to Nepali students, and such students shall be provided appropriate subsistence allowance by the concerned teaching institution. (c) Provisions relating to fees charged for subjects in nursing, Ayurveda and other medical education disciplines under the concerned teaching institution shall be as prescribed. (3) Notwithstanding anything contained elsewhere in this Act, after the commencement of this Act, the postgraduate level in the medical field conducted in government teaching institutions shall be free for Nepali students. (4) Notwithstanding anything contained in sub-sections (1) and (2), in the case of foreign students, the concerned university or academy shall itself determine the fee on the basis of the standards determined by the Commission. (5) When admitting Nepali students to seats set aside for foreign students which are not filled by foreign students, the tuition fee determined for Nepali students shall be charged. (6) If Nepali students are not admitted, foreign students may be admitted to such seats with the permission of the Commission. Chapter-8 Curriculum, Teaching Method, Degree and Institutional Accountability 19. Standards of Curriculum, Teaching Method and Degree: (1) The curriculum, teaching method and standards of the degree of universities, academies or other teaching institutions shall be as determined by the Commission. (2) The curriculum pursuant to sub-section (1) shall include, in addition to theoretical knowledge relating to medical education, subject matters relating to development of practical skills, human sensitivity, communication skills, professionalism, social accountability, collaboration, integrity and leadership ability. (3) The Commission shall maintain uniformity in degrees conferred by universities, academies or other teaching institutions. 20.

Institutional Accountability: (1) Each university, academy or other teaching institution shall, on the recommendation of the Commission, work as a service area in at least one district specified by the ministry of the Government of Nepal dealing with health related subject. (2) Institutions pursuant to sub-section (1) shall provide community-based education and medical services including specialist services within their service area. (3) Institutions pursuant to sub-section (1) shall have the accounts of income and expenditure audited and socially audited in a transparent manner, submit reports thereof to the Commission, and publish them on their website by regularly updating them. Chapter-9 Teacher, Vice-Chairperson, Directorate, Board, Director and Employees 21. Provisions Relating to Teachers: (1) Notwithstanding anything contained in prevailing law, universities, academies and other teaching institutions shall arrange for professors, associate professors

and assistant professors having the minimum qualification and experience as specified by the Commission: Provided that for teaching higher education, they must have passed at least the postgraduate level in the relevant subject. (2) Teaching institutions under the Council shall arrange for instructors having the minimum qualification and experience as specified by the Commission. 22. Vice-Chairperson: (1) The Government of Nepal shall appoint one person as the Vice-Chairperson of the Commission from among the persons recommended by the committee pursuant to Section 23. (2) The Vice-Chairperson shall be the full-time chief executive of the Commission. (3) The term of office of the Vice-Chairperson shall be a maximum of four years. (4) Notwithstanding anything contained in sub-section (3), if the Commission decides by a majority of the members currently holding office to remove the Vice-Chairperson on the grounds that the Vice-Chairperson has not behaved in accordance with the position, has not fulfilled responsibilities, or is unable to perform functions due to physical or mental illness, the Vice-Chairperson shall be automatically relieved from office: Provided that such person shall not be deprived of an opportunity to submit their defense before the decision to remove is made. (5) The Vice-Chairperson shall receive monthly remuneration and other facilities as specified by the Government of Nepal. 23.

Recommendation Committee: (1) The Government of Nepal shall constitute a Recommendation Committee as follows to recommend names for the appointment of the Vice-Chairperson:- (a) Chairperson of the Public Service Commission - Coordinator (b) Chief Secretary of the Government of Nepal or a secretary of the Office of the Prime Minister and Council of Ministers designated by the Chief Secretary - Member (c) One woman designated by the Government of Nepal from among professors in the medical field - Member (2) The Recommendation Committee pursuant to sub-section (1) shall recommend three names to the Government of Nepal for appointment to the post of Vice-Chairperson within thirty days from the date of commencement of its work. (3) The procedure to be adopted for recommending names for appointment to the post of Vice-Chairperson shall be as determined by the Committee itself. 24. Bases for Recommendation: (1) The Recommendation Committee pursuant to Section 23 shall recommend to the Government of Nepal for appointment to the post of Vice-Chairperson from among the following persons:- (a) Having obtained at least a postgraduate degree in any discipline of medical science from a recognized university with at least twenty years of experience in any discipline of medical science, or at least ten years of experience in the field of medical education along with at least twenty years of experience in the health service sector, (b) Having gained reputation as a serving or retired Vice-Chancellor, professor or distinguished category doctor of a teaching institution or as a medical education expert, (c) Having demonstrated excellent managerial skills and capabilities in the relevant field, (d) Not being a member of any political party at the time of appointment, (e) Having no private interest in the field of medical education, (f) Maintaining high moral character, and (g) Not having the disqualification pursuant to Section 25. (2) Notwithstanding anything contained in prevailing law, if a serving person or office bearer of a teaching institution or any other service is appointed to the post of Vice-Chairperson, such person shall be deemed to be automatically relieved from the post held prior to the date of such appointment. 25.

Disqualification for Vice-Chairperson: The following person shall not be eligible for appointment to the post of Vice-Chairperson:- (a) A non-Nepali citizen, (b) One who is bankrupt, (c) One who is of unsound mind, (d) One who has been convicted by a court of an offense involving corruption, money laundering, human trafficking, sale or distribution or trafficking of narcotic drugs, passport misuse, rape or any other criminal offense involving moral turpitude, (e) One who has been blacklisted pursuant to prevailing law and a period of three years has not elapsed since being removed from such list, (f) One who has not completed forty-five years of age, (g) One who is disqualified from being appointed pursuant to Article 291 of the Constitution of Nepal. 26. Circumstances of Vacancy: The post of Vice-Chairperson shall become vacant in the following

circumstances:- (a) If such person resigns from office, (b) If such person is relieved from office pursuant to sub-section (4) of Section 22, (c) If such person becomes disqualified to hold the post of Vice-Chairperson pursuant to Section 25, (d) If such person attains the age of sixty-five years, (e) If such person dies. 27. Functions, Duties and Powers of the Vice-Chairperson: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Vice-Chairperson shall be as follows:- (a) To implement or cause to implement policies, plans and programs approved by the Commission, (b) To cause to prepare the annual program, plan and budget of the Commission and submit it to the Commission, (c) To implement or cause to implement the decisions of the Commission and the Committee, (d) To perform employee management and other managerial functions of the Commission, (e) To perform or cause to perform other functions as prescribed. 28. Directorate and Board: (1) The following Directorates and Board shall be in the Commission for performing the work of the Commission:- (a) Standards and Accreditation Directorate, (b) Planning, Coordination and Academic Advancement Directorate, (c) Examination Directorate, (d) National Board of Medical Specialties. (2) The constitution, functions, duties and powers of the Directorate and Board shall be as prescribed. 29.

Director: (1) There shall be one full-time Director in each Directorate or Board to function as the head of the Directorate or Board. (2) The Vice-Chairperson shall appoint the Director on the recommendation of the committee pursuant to sub-section (6). (3) The term of office of the Director shall be four years, and such person may be reappointed for one more term. (4) Notwithstanding anything contained in sub-section (3), if a Director does not behave in accordance with the position, fails to fulfill responsibilities, or does any act contrary to the interests of the Commission, the Vice-Chairperson may remove such person from office at any time: Provided that such person shall be given a reasonable opportunity to submit their defense before such removal. (5) The remuneration, facilities and other terms of service of the Director shall be as prescribed. (6) For recommending names to the Vice-Chairperson for the appointment of the Director, a three-member recommendation committee shall be constituted with the Member of the National Planning Commission designated by the Chairperson as the Coordinator, and comprising a professor of the relevant subject and one expert. (7) The committee pursuant to sub-section (6) shall recommend names to the Vice-Chairperson for appointment to the post of Director within fifteen days from the date of commencement of its work. (8) The committee pursuant to sub-section (6) shall recommend suitable persons for appointment to the post of Director from among persons with expertise relating to the work of the Directorate or Board and at least fifteen years of experience, or experience in a distinguished category post of the Government of Nepal, having excellent managerial skills and capabilities, clean image and professionalism. (9) The procedure to be adopted for recommending names for appointment to the post of Director by the recommendation committee pursuant to sub-section (6) shall be as determined by the Committee itself. 30.

Member-Secretary of the Commission: (1) The senior employee of the Commission shall function as the Member-Secretary of the Commission. (2) Until an employee is arranged in the Commission pursuant to sub-section (1), an employee of the gazetted first class of the Government of Nepal shall function as the Member-Secretary of the Commission. (3) The other functions, duties and powers of the Member-Secretary shall be as follows:- (a) To prepare the annual program and plan of the Commission and submit them to the Vice-Chairperson, (b) To prepare the annual budget of the Commission, (c) To look after or cause to look after the movable and immovable property of the Commission, (d) To implement or cause to implement the decisions of the Commission, (e) To keep the records in the Commission updated, organized and secure, (f) To divide work among the employees of the Commission and assign them to work, (g) To monitor, control and supervise the business of the office of the Commission, (h) To contact and coordinate with the Government of Nepal and other concerned bodies as required, (i) To perform other functions specified by the

Commission or the Committee. 31. Organizational Structure and Employees of the Commission: (1) The organizational structure of the Commission shall be as approved by the Government of Nepal with the consent of the Ministry of Finance. (2) Until employees are appointed in the Commission, the employees required for the conduct of the work of the Commission shall be provided by the Government of Nepal.

Chapter-10 Fund, Accounts and Audit of the Commission 32. Fund of the Commission: (1) The Commission shall have its own separate Fund. (2) The Fund pursuant to sub-section (1) shall consist of the following amounts:- (a) ??.

55. No hindrance: An educational institution established and operating under the law in force at the time of commencement of this Act shall not be hindered from operating the educational program it has been operating, subject to this Act.